

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

MUNIR AHMAD.

Plaintiff,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT,
POLICE OFFICER RICHARD CONDE, TAX REG#
945605, INDIVIDULLY AND AS A POLICE
OFFICER, POLICE OFFICER SALVATORE
PROVENZANO, TAX REG # 943699,
INDIVIDUALLY AND AS A POLICE OFFICER,

Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose:

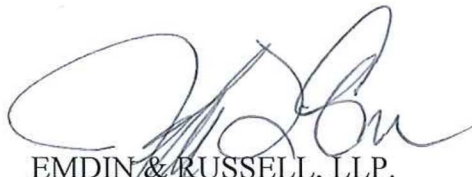
Defendants.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 10 day of June, 2019


EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq., as Counsel
Attorneys for Plaintiff

499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Richard Conde
Tax # 945605
c/o 20th pct.
120 West 82nd Street
New York, NY 10024

Police Officer Salvatore Provenzano
Tax Reg 943699
c/o 20th pct.
120 West 82nd Street
New York, NY 10024

SUPREME COURT OF THE STATE OF NEW YORK
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PROVENZANO, TAX REG # 943699,
INDIVIDUALLY AND AS A POLICE OFFICER,

Defendants.

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The plaintiff, Munir Ahmad., by his attorneys, Emdin & Russell, LLP
complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City" was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", by and through its' agents, servants and/or employees, operated, maintained and controlled the New York City Police Department hereinafter referred to as "NYPD", including all police officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 7th

day of September, 2018, Police Officer Richard Conde, hereinafter referred to as “Conde” was employed as a police officer by the “City” and/or “NYPD” and assigned to the 20th pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief Conde’s tax id number is 945605.

4. Upon information and belief at all times hereinafter mentioned and on the 7th day of September, 2018, at approximately 10:50 p.m. “Conde”, was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

5. Upon information and belief, at all times hereinafter mentioned, and on the 7th day of September, 2018, Police Officer Salvatore Provenzano, hereinafter referred to as “Provenzano” was employed as a Police Officer by the “City” and/or “NYPD” and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief Provenzano’s tax id number is 943699.

6. Upon information and belief at all times hereinafter mentioned and on the 7th day of September, 2018, at approximately 10:50 p.m. Provenzano was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee.

7. Collectively Conde and Provenzano will hereafter be referred to as the “officers”.

8. Upon information and belief, on September 7, 2018 at approximately 10:50 p.m. the “officers”, individually and/or collectively were acting under and required to follow the New York City Police Patrol Guidelines, Interim Orders and/or Administrative Orders

9. On the 7th day of September, 2018, plaintiff, Munir Ahmad, hereinafter referred

to as "Ahmad" or as the "plaintiff" was a resident of the State of New York, County of Queens.

10. That on September 7, 2018, at approximately 10:50 p.m. the plaintiff was lawfully operating a yellow taxi medallion cab in the vicinity of Broadway and West 85th Street in New York County, New York, hereinafter also referred to as "the location".

11. At that time and place, the plaintiff's vehicle was stopped at a red light. The vehicle operated by Provenzano pulled up to the red light alongside Ahmad's vehicle.

12. Conde, who was in the front passenger seat of the police vehicle, falsely accused the plaintiff of being on his cell phone. Ahmad advised the officer that he was not on his cell phone. Conde was cursing and using foul language toward the plaintiff.

13. Provenzano moved his vehicle and boxed Ahmad's vehicle in.

14. Conde and Provenzano exited their vehicle and approached Ahmad's vehicle.

15. Ahmad attempted to film the encounter on his cell phone.

16. Conde refused to answer Ahmad's question why he was being stopped.

17. Conde refused Ahmad's request to call a supervisor to the scene.

18. The plaintiff had committed no crime or traffic violation.

19. Conde reached into the plaintiff's vehicle to unlock the door.

20. Conde opened the plaintiff's door without the plaintiff's permission and/or without legal authority.

21. Conde knocked the plaintiff's cell phone out from his hand.

22. Conde and Provenzano grabbed the plaintiff and attempted to forcibly remove him from his vehicle while the plaintiff was restrained by his seat belt.

23. The plaintiff was struck in the back of his head with what he believed to be a

flashlight.

24. The plaintiff was hit and forcibly removed from his vehicle by the defendants.

25. The plaintiff's car was still in gear when he was forcibly removed and said actions caused the plaintiff's vehicle to slowly roll forward, damaging his car.

26. The plaintiff was placed in handcuffs.

27. Conde went into the plaintiff's car and retrieved the plaintiff's cell phone and deleted the video.

28. When the plaintiff objected to Conde's actions, Provenzano kicked him in the leg.

29. Plaintiff was placed in the back of the patrol car.

30. Upon information and belief Provenzano drove the plaintiff to the precinct. Upon information and belief a police officer drove the plaintiff's vehicle to the 20th pct.

31. Provenzano verbally threatened the plaintiff en route to the 20th pct..

32. Plaintiff was searched multiple times and had no contraband on him.

33. The plaintiff was booked at the 20th precinct with Conde listed as the arresting officer.

34. The plaintiff was falsely arrested.

35. The plaintiff was falsely charged with committing the crimes/violations assault in the third degree, criminal mischief in the fourth degree, resisting arrest, attempted assault in the third degree, reckless driving, disorderly conduct, and harassment.

36. Upon information and belief Conde filled out false police reports.

37. Upon information and belief, Conde provided false information to the District Attorney's Office, New York County, which resulted in the plaintiff being charged with crimes

that each defendant knew that the plaintiff did not commit.

38. The plaintiff was held in custody at the 20th pct., until he was transported in handcuffs and shackles to Central Booking. At the time he was transported he was the only individual in shackles.

39. The plaintiff was held in custody until he was arraigned on September 8, 2018 at approximately 6:30 p.m. and released on his own recognizance.

40. After the plaintiff's release he went to the 20th pct. to retrieve his car and personal possessions.

41. Inside the plaintiff's car he found a metal flashlight, believed to be the flashlight that Conde struck him with in the back of the head.

42. The plaintiff immediately returned the flashlight to the desk officer and recorded the exchange.

43. The plaintiff also found that the money he had in his car was missing when the vehicle was returned to him.

44. The plaintiff was physically injured by the defendants

45. The plaintiff was emotionally injured by the defendants.

46. The plaintiff's license to operate a taxi/vehicle was suspended as a result of his arrest and he could not work.

47. The plaintiff incurred legal fees to defend himself against the false charges filed by the defendants.

48. The plaintiff was compelled to make multiple court appearances.

49. The false charges against the plaintiff went to trial before the Hon Judge Heidi

Cesare in New York County Criminal Court in March 2019.

50. Defendants Conde and Provenzano testified at trial with the intent to convict the plaintiff of crimes they knew he did not commit.

51. Defendants Conde and Provenzano testified falsely.

52. The plaintiff was acquitted of all charges on March 8, 2019.

53. That notice of the plaintiff's claim and notice of intention and supplemental notice of claim advising of plaintiff's intent to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".

54. The plaintiff submitted to a 50(h) hearing on June 5, 2019

55. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

56. That this action is commenced within one year and 90 days after the cause of action arose.

57. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE IMPRISONMENT

58. The Plaintiff repeats, reiterates and realleges each and every allegation contained

in paragraphs marked "1" through "57" with the same force and effect as if more fully and at length set forth herein.

59. That beginning on or about the 7th day of September, 2018, at or about approximately 10:50 p.m. at or near the "location" until the plaintiff was arraigned and released on her own recognizance on September 8, 2018, the defendants, their agents, servants and/or employees detained and imprisoned plaintiff without any just cause or grounds.

60. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crime.

61. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

62. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

63. That by reason of the aforesaid false imprisonment and detention, plaintiff was subjected to great indignity, pain, humiliation, and loss of freedom and the said plaintiff has been otherwise damaged.

64. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR FALSE ARREST

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "64" with the same force and effect as if more fully and at length set forth herein.

66. That beginning on or about the 7th day of September, 2018, at or about approximately 10:50 p.m. at the "location", the plaintiff was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms..

67. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable ground to believe that the plaintiff committed, or was about to commit a crime or was guilty of any crimes.

68. The plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to her arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

69. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, search, and arrest the plaintiff; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

70. That by reason of the aforesaid false arrest, plaintiff was subjected to great

indignity, pain, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

71. That by reason of the aforesaid, the plaintiff has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR ASSAULT AND BATTERY

72. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "71" with the same force and affect as if more fully and at length set forth herein.

73. As set forth above on September 7, 2018 at 10:50 p.m. at the "location" the plaintiff, who committed no crime, was, after the defendants illegally and without cause forcibly entered the plaintiff's vehicle, seized, grabbed, p handcuffed, struck, hit with a hard object believed to be a flashlight, kicked and threatened and by the defendant, "City", and the "NYPD", and its agents/servants, and/or employees, including upon information and belief the named "officers".

74. At the 20th pct. on or about September 2018 the defendants maliciously and with the intent to cause plaintiff pain and/or emotional trauma shackled the plaintiff while transporting him, while other prisoners were transported only in handcuffs.

75. That all said contact was committed without the plaintiff's permission or consent.

76. That all said contact was unlawful and without privilege and was objectively unreasonable.

77. That all contact committed by defendants through their agents, servants, and/or employees, including defendant “officers”, was offensive to plaintiff and caused him to fear further contact and imminent harm, intimidated plaintiff, and caused plaintiff to sustain physical and/or psychological injury.

78. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

79. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR EXCESSIVE FORCE

80. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "79" with the same force and affect as if more fully and at length set forth herein.

81. As set forth above the plaintiff was seized, grabbed, struck, punched, kicked, threatened, handcuffed, and shackled by the defendant, “City”, and the “NYPD”, and its agents/servants, and/or employees, including upon information and belief the named “officers”..

82. That all said contact was excessive, unreasonable, and beyond all reasonable means necessary to effectuate the plaintiff’s arrest and/or compliance.

83. That all said contact was unlawful and without privilege.

84. That all contact committed by defendants through their agents, servants, and/or employees, including defendant “officers”, was offensive to plaintiff and caused him to fear

further contact and imminent harm, intimidated plaintiff, and caused plaintiff to sustain physical and/or psychological injury.

85. That said excessive contact took place in the presence of other defendant officers who had the ability to stop, intervene, and/or mitigate the harm and consciously failed to do so, thereby implicitly condoning as well as participating in said acts.

86. That the above acts committed by the defendants constituted the use of excessive force on the plaintiff while the defendant officers were acting within the scope of their employment.

87. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FIFTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR FAILING TO INTERVENE AND PROTECT

88. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "87" with the same force and affect as if more fully and at length set forth herein.

89. As set forth above the plaintiff was seized, grabbed, struck, searched, held, handcuffed, hit, handcuffed and shackled, and threatened by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including upon information and belief the named "officers".

90. That Provenzano was present while Conde assaulted, battered and used excessive force on the plaintiff, and failed to intervene and stop the same from occurring despite having the ability to do so.

91. That Conde was present while Provenzano assaulted, battered and used excessive force on the plaintiff, and failed to intervene and stop the same from occurring despite having the ability to do so.

92. That plaintiff's constitutional rights under the State of New York and the United States of America were violated by the defendants through their agents, servants, and/or employees, including defendant "officers", and officers present failed to intervene, stop, report and/or protect the plaintiff's rights and allowed them to be violated by the defendant officers while acting under the color of law.

93. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SIXTH CAUSE OF
ACTION ON BEHALF OF THE PLAINTIFF
FOR PROPERTY DAMAGE

94. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "93" with the same force and affect as if more fully and at length set forth herein.

95. As set forth above, on September 7, 2018 at approximately 10:50 p.m. at the "location" the defendants actions caused the plaintiff's operated vehicle, license plate number 4P28-b to roll forward and strike the defendant's vehicle to the plaintiff's vehicle.

96. The plaintiff, a cab driver, leased said vehicle and was responsible to pay for any damage to it.

97. The plaintiff paid approximately \$1500.00 to repair the damage to the vehicle caused by the defendant's conduct.

98. That by reason of the aforesaid, the plaintiff has been damaged in a sum of fifteen hundred (\$1,500.00) dollars.

AS AND FOR A SEVENTH CAUSE OF ACTION:
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, BY POLICE OFFICER CONDE AND POLICE
OFFICER PREVENZANO, EACH IN THEIR INDIVIDUAL CAPACITIES
AND AS AGENTS OF THE CITY OF NEW YORK, THE PLAINTIFF ALLEGES:

99. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "98" with the same force and effect as if more fully and at length set forth herein.

100. That at all times hereinafter mentioned, the defendant "Conde" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

101. That at all times hereinafter mentioned, the defendant Prevenzano was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

102. That at all times hereinafter mentioned, the defendant "officers", individually and collectively, were acting pursuant to orders and directives from defendant, The City of New York.

103. That during all times hereinafter mentioned, the defendants “officers” individually, and/or collectively acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983.

104. That the unlawful and illegal conduct of defendants “officers” deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States as well as:

b) The right not to be subjected to excessive use of force

c) The right to Due Process Law.

d) The right to equal protection under the law.

e) The right not to be subjected to cruel and unusual punishment and/or inhumane treatment

f) The right to freedom of speech and expression

g) The right to a fair trial

105. That by reason of the aforesaid violations, by and through the improper stop, search, and seizure of the plaintiff and his vehicle; use of force; use of arbitrary, excessive force,

threats; false arrest and false imprisonment; assault and battery; falsifying evidence and/or filing false reports; retaliating to the plaintiff's freedom of speech; denying plaintiff prompt and necessary medical attention; attempting to erase and/or destroy evidence; malicious prosecution; denial of right to a fair trial; threats; intimidation; failing to intervene, stop and mitigate misconduct; retention of property; testifying falsely; stealing the plaintiff's currency; destruction and/or loss of property, the defendant Police "Officers" violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" individually and/or collectively violated 42 U.S.C. §1983.

106. That as a direct proximate result of "the officers" actions plaintiff was subjected to great indignities and humiliation, pain and distress of mind and body, loss of freedom, loss of employment, legal fees, property damage, property loss, shame and humiliation and was injured thereby.

107. That by reason of the aforesaid, plaintiff was imprisoned and injured in mind and body, still suffers, and upon information and belief will continue to suffer great physical and mental pain and economic loss

108. That by reason of the aforesaid, the plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983, 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR AN EIGHTH CAUSE OF
ACTION ON BEHALF OF PLAINTIFF
FOR MALICIOUS PROSECUTION**

109. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "108" with the same force and effect as if more fully and at length set forth herein.

110. The plaintiff was maliciously prosecuted by the defendants in that the plaintiff was arrested, imprisoned and prosecuted based upon false claims, reports, documentation, and/or statements and/or omissions made by the defendants with the intent to prosecute the plaintiff for crimes they knew he did not commit.

111. The plaintiff was caused to appear in court to defend against the false charges.

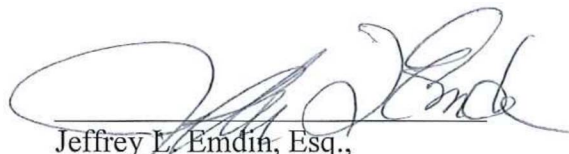
112. The plaintiff was innocent of all crimes charged

113. The plaintiff was found not guilty of all criminal charges after trial.

114. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

WHEREFORE, the plaintiffs demand judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the Seventh Cause of Action) and such other and further relief as to the Court seems just and proper on the First through the Eighth causes of action.

DATED: New York, New York
June 10, 2019


Jeffrey E. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

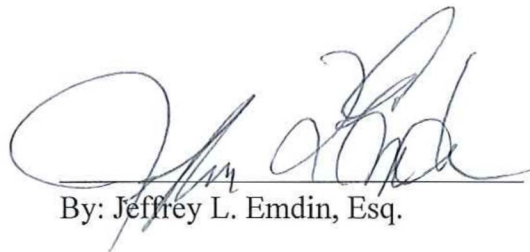
That I am an attorney associated with the law firm of Emdin & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
June 10, 2019



By: Jeffrey L. Emdin, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

MUNIR AHMAD,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER RICHARD CONDE, TAX REG# 945605, INDIVIDULLY AND AS A POLICE
OFFICER, POLICE OFFICER SALVATORE PROVENZANO, TAX REG # 943699,
INDIVIDUALLY AND AS A POLICE OFFICER,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

To: City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, NY 10007

Police Officer Richard Conde
Tax # 945605
c/o 20th pct.
120 West 82nd Street
New York, NY 10024

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Salvatore Provenzano
Tax Reg. 943699
c/o 20th pct.
120 West 82nd Street
New York, NY 10024

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: June 6, 2019

Signature

Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on